

**AMENDMENT TO DECLARATION/
NOTIFICATION OF VARIANCE**

YOWELL RANCH

Bell County, Texas

Declarant: WBW Development, Ltd., a Texas limited partnership

Cross reference to Declaration of Covenants, Conditions and Restrictions for Yowell Ranch, recorded as Document No. 00002251, Official Public Records of Bell County, Texas, as amended.

**AMENDMENT TO DECLARATION / NOTIFICATION OF VARIANCE
YOWELL RANCH**

This Amendment to Declaration/Notification of Variance (this "Amendment") is made and executed by **WBW Development, Ltd.**, a Texas limited partnership ("**Declarant**"), and is as follows:

1. **Identification of Property Affected by Amendment.** This Amendment is filed with respect to Lot 41, Block 6, Yowell Ranch, Phase IV, a subdivision according to the plat recorded in Instrument No. 2015-32843 of the Official Public Records of Bell County, Texas (the "**Lot**"). Declarant filed that certain Declaration of Covenants, Conditions, and Restrictions for Yowell Ranch, recorded as Document No. 00002251, Official Public Records of Bell County, Texas, as amended (the "**Declaration**"), which included the Lot as part of the Property that was made subject to the Declaration.

2. **Authority.** Pursuant to *Section 12.2.a.* of the Declaration, while Declarant owns any real property subject to the Declaration, Declarant may amend the Declaration for any purpose, in its sole discretion, and without a vote or the consent of any other party. Further, pursuant to *Section 12.2.a.*, Declarant shall not modify the Declaration in a manner that materially and adversely affects Lots within the Property or the Property without the prior written consent of Pulte, so long as Pulte holds a valid contract to purchase Lots within the Property. Written consent from Pulte evidencing its consent for this Amendment is provided below.

Additionally, pursuant to *Section 6.2*, the Architectural Control Authority shall have the sole and exclusive authority to authorize variances from strict compliance with the requirements in the Declaration. As stated in *Section 6.2.a.*, during the Development Period, the Declarant shall be the Architectural Control Authority, unless the Declarant in writing has terminated its rights as such. Declarant hereby confirms that Declarant is currently serving as the Architectural Control Authority and has not terminated its rights.

3. **Purpose of Amendment/Variance.** The Killeen Independent School District has contracted to purchase the Lot for the purpose of creating and providing pedestrian access over and across the Lot by creating a pedestrian walkway from Addison Street in Yowell Ranch Phase IV subdivision to property owned by Killeen Independent School District located directly south of and adjacent to the Lot.

4. **Amendment/Grant of Variance.** The Declarant hereby (i) grants a variance as requested by Killeen Independent School District to allow the Killeen Independent School District to use the Lot to create and provide pedestrian access only, with no permanent improvements, with the exception of pedestrian walkways, to be constructed on the Lot so long as the Lot is owned by the Killeen Independent School District; and (ii) effectively amends the Declaration to provide that restrictive covenants, resolutions, and/or policies of record under Instrument No's. 2010-00002251; 2011-00002528; 2011-00021294; 2015-00039904; 2015-00043980;

2011-00045068; 2011-00045069; 2011-00045070; 2011-00040301; and 2011-00040303, as amended, shall not apply to Lot 41, Block 6, Yowell Ranch Phase IV, and/or Killeen Independent School District as the owner of the Lot, so long as the Lot is owned by the Killeen Independent School District; however, the covenants, resolutions and/or policies referenced herein (together with any subsequent amendments or additions) shall apply to future owners of the Lot in the event Killeen Independent School District conveys all or a portion of the Lot, and nothing contained in the covenants, resolutions, and/or policies referenced herein (nor any subsequent amendments thereto) is enforceable against Killeen Independent School District.

5. **Defined Terms.** Capitalized terms used but not defined in this Amendment will have the meaning subscribed to such terms in the Declaration.

EXECUTED to be effective as of the 15th day of October, 2018.

DECLARANT:

WBW DEVELOPMENT, LTD., a Texas limited partnership

By: WBW Development Management, LLC, a Texas limited liability company, general partner

By: [Signature]
Printed Name: Bruce Whitis
Title: President

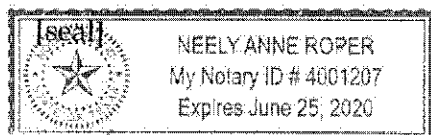
Approved:

Pulte Homes of Texas, L.P.

By: [Signature]
Name: Bryan Bail
Title: V.P. - Land Acquisition

STATE OF TEXAS §
COUNTY OF Bell §

nl This instrument was acknowledged before me on the 15th day of October, 2018, by Bruce Whitis as President of WBW Development Management, LLC, a Texas limited liability company, General Partner of WBW Development, Ltd., a Texas limited partnership, on behalf of said limited liability company and limited partnership.



[Signature]
Notary Public, State of Texas

**** Electronically Filed Document ****

**Bell County, Tx
Shelley Coston
County Clerk**

Document Number: 2018-46541

Recorded As : ERX-RECORDINGS

Recorded On: November 07, 2018
Recorded At: 10:51:12 am
Number of Pages: 4
Book-VI/Pg: Bk-OR VI-10649 Pg-292
Recording Fee: \$19.00

Parties:

Direct- WBW DEVELOPMENT LTD

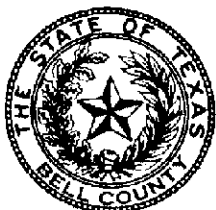
Indirect- YOWELL RANCH

Receipt Number: 352351
Processed By: Monica Daye

(Parties listed above are for Clerks reference only)

***** **THIS PAGE IS PART OF THE INSTRUMENT** *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property Records in Bell County, Texas

**Shelley Coston
Bell County Clerk**

A handwritten signature in cursive script that reads "Shelley Coston".